

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                     |                            |                                                        |                                    |                                 |
|--------------------------------------------------|-------------------------------------|----------------------------|--------------------------------------------------------|------------------------------------|---------------------------------|
| Investigator:<br>Emily Devaney                   | Team:<br>Squad #5                   | CCRB Case #:<br>201903304  | <input type="checkbox"/> Force                         | <input type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                  |                                     |                            | <input checked="" type="checkbox"/> Abuse              | <input type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Sunday, 03/31/2019 3:45 PM   | Location of Incident:<br>§ 87(2)(b) | Precinct:<br>67            | 18 Mo. SOL<br>9/30/2020                                | EO SOL<br>5/17/2021                |                                 |
| Date/Time CV Reported<br>Sat, 04/06/2019 3:42 AM | CV Reported At:<br>IAB              | How CV Reported:<br>E-mail | Date/Time Received at CCRB<br>Wed, 04/17/2019 11:08 AM |                                    |                                 |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Subject Officer(s)    | Shield | TaxID  | Command |
|-----------------------|--------|--------|---------|
| 1. POM David Darcy    | 1775   | 954700 | 067 PCT |
| 2. SGT Brian Schulman | 02429  | 939435 | 067 PCT |

| Witness Officer(s)        | Shield No | Tax No | Cmd Name |
|---------------------------|-----------|--------|----------|
| 1. POM Salvatore Rizzo    | 28468     | 955390 | 067 PCT  |
| 2. POM Adam Gierlachowski | 19124     | 958629 | 067 PCT  |

| Officer(s)           | Allegation                                           | Investigator Recommendation |
|----------------------|------------------------------------------------------|-----------------------------|
| A.SGT Brian Schulman | Abuse: Sergeant Brian Schulman stopped § 87(2)(b)    | § 87(2)(b)                  |
| B.POM David Darcy    | Abuse: Police Officer David Darcy stopped § 87(2)(b) | § 87(2)(b)                  |
| C.SGT Brian Schulman | Abuse: Sergeant Brian Schulman stopped § 87(2)(b)    | § 87(2)(b)                  |
| D.POM David Darcy    | Abuse: Police Officer David Darcy stopped § 87(2)(b) | § 87(2)(b)                  |

### Case Summary

On April 6, 2019, an anonymous complainant identified only as “§ 87(2)(b)” filed this complaint with 311 who forwarded the case to IAB, generating original log #19-13572. The CCRB received the complaint on April 17, 2019. The original complaint did not identify the victim or victims.

The investigation obtained BWC footage in this case.

On May 17, the undersigned reached the complainant by phone, and she identified herself as § 87(2)(b). She confirmed that she did not witness the incident, and identified the victims as § 87(2)(b) and § 87(2)(b). She provided phone numbers for both men. The undersigned conducted NYC DOC searches and confirmed that both men had been released from custody.

The undersigned called § 87(2)(b) on June 5 but was unable to leave a message. The undersigned reached him on June 11 and he provided his mailing address. He began speaking about the incident, but then disconnected the call. The undersigned immediately called back, but § 87(2)(b) did not answer and the undersigned could not leave a message. The undersigned reached § 87(2)(b) again on June 20 and he asked why the undersigned was calling, but then he hung up when the undersigned began speaking. The undersigned called back immediately and the call was rejected after ringing twice. The undersigned was unable to leave a message. The undersigned called twice more, on June 24 and June 26, and could not leave messages.

The undersigned mailed letters to the address provided by § 87(2)(b) on June 17 and June 24. These letters were not returned by the USPS.

As of the date of this report, § 87(2)(b) has not attempted to contact the undersigned or the CCRB. § 87(2)(g)

The number § 87(2)(b) provided for § 87(2)(b) proved to be out of service on multiple occasions throughout the month of June. § 87(2)(b)'s arrest in this incident was sealed and therefore did not provide any further contact information. His arrest history did not contain any unsealed arrests from the last ten years. The undersigned searched § 87(2)(b)'s OCA history, found two previous addresses, and mailed letters to those addresses on June 18 and June 24. One of the letters to one of those addresses was later returned by the USPS. A CLEAR search did not produce any further contact information for § 87(2)(b). A LexisNexis search returned one possible address for § 87(2)(b) and the undersigned mailed a letter to that address on June 26. A COLES search and a CLEAR search did not show anyone with the surname § 87(2)(b) living at that address, so the undersigned did not send any additional letters to that address.

As of the date of this report, § 87(2)(b) has not attempted to contact the undersigned or the CCRB. § 87(2)(g)

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Squad No.: \_\_\_\_\_

Investigator: \_\_\_\_\_  
Signature Print Title & Name Date

Squad Leader: \_\_\_\_\_  
Signature Print Title & Name Date

Reviewer: \_\_\_\_\_  
Signature Print Title & Name Date